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PART I—Orders and Notifications by the Governor of West Bengal, the High Court, Government Treasury, etc.

GOVERNMENT OF WEST BENGAL

Co-operative Election Commission

West Bengal

NOTIFICATION

No. 15/CEC Kolkata, the 13th April, 2012.

WHEREAS the Co-operative Election Commission, West Bengal has been empowered under sub-section (8) of section 96 of the West Bengal Co-operative Societies Act, 2006 to make rules, regulations and procedure providing for -

(a) the conduct of election;

(b) the preparation of electoral roll for the election;

(c) fixing the date, place and manner of election;

(d) fixing the date and manner of publication and declaration of the results of the election;

(e) fixing the cost of holding of election of a Co-operative Society and the manner of assessing and realization of such cost;

(f) symbols that may be used for election by the candidates.

NOW, THEREFORE, in exercise of the power conferred by sub-section (8) of section 96 of the West Bengal Co-operative Societies Act, 2006, the following regulations are framed by the Co-operative Election Commission, West Bengal for conduct of election etc. in co-operative societies in West Bengal:

1 (1) These regulations shall be called the West Bengal Co-operative Election Commission Regulations, 2012.

(2) It shall come into force with effect from the date of its publication in the Official Gazette.

2. In these regulations, unless there is anything repugnant in the subject or context, words and expressions shall have the same meaning as are respectively assigned to them in the West Bengal Co-operative Societies Act, 2006 or in the West Bengal Co-operative Societies Rules, 2011.

3. REGULATIONS REGARDING CONDUCT OF ELECTION OF DELEGATES OF THE CO-OPERATIVE SOCIETIES:-

(1) (i) For the purpose of conduct of election of delegates, the Co-operative Election Commission shall make appointment of the following personnel who shall be officers of the State Government:

a) Returning Officer

b) Assistant Returning Officer

(ii) The R.O.s shall make appointment of the following personnel for smooth conduct of the election in reference to Rule 154 of the W.B.C.S. Rules, 2011

a) Presiding Officer,

b) Polling personnel.

Provided that nothing in this regulation shall prevent the Co-operative Election Commission from appointing the same person to be the Returning Officer or the Assistant Returning Officer for more than one range or zone.

(2) After appointment, Officers mentioned at (a) to (d) above shall be deemed to have been deputed under the Co-operative Election Commission, West Bengal.

(3) Functions of the Returning Officers:

i. Subject to the superintendence, control and direction of the Co-operative Election commission, the Returning Officer shall Co-ordinate and supervise all work in connection with updating and revision of electoral rolls for all Co-operative Societies within his jurisdiction;

ii. Subject to the approval of the Co-operative Election Commission, the Returning Officer shall prepare and publish the complete time schedule for holding election;

iii. Subject to the superintendence, direction and control of Co-operative Election Commission, the Returning Officer shall supervise the conduct of the elections of all the Cooperative societies within his jurisdiction;

iv. It shall be the general duty of the Returning Officer at any election to do the following amongst other acts and things as may be necessary for effectually conducting the election in the manner provided by the West Bengal Co-operative Societies Rules, 2011 and in these Regulations:

a) Make arrangement for polling station(s),

b) Issue notice inviting nominations,

c) Receive and Scrutinise nomination papers,

d) Allot symbols to contesting candidates,

e) Publication of a list of candidates eligible to contest,

f) Make arrangements for despatch of Polling Personnel to the Polling Stations,

g) Make arrangement for ballot box,

h) Make arrangement for printing of ballot papers,

i) Compile results of different Polling Stations where necessary,

j) Declare the result of an election and issue certificate thereof in the annexed format.

v. Receive papers from the Polling Personnel in connection with election;

vi. The Returning Officer may also take assistance of the Assistant Returning Officers and polling personnel (including his /her office staff) as may be required in discharge of his duties;

vii. The Returning Officer shall liaison with the district administration for maintenance of law and order during election of any co-operative society within his jurisdiction;

viii. The Returning Officer shall send report/returns to the Co-operative Election Commission, West Bengal as may be directed by the Commission from time to time;

ix. All the post-electoral relevant records should be preserved in the custody of the concerned society with proper receipt, but in exceptional cases such documents are required to be kept in the Range Office if the Commission / Returning Officer / Assistant Returning Officer thinks so;

x. The Returning Officer shall keep in his custody all documents which he may receive from the Assistant Returning Officers or which may be prepared by himself in connection with election of any co-operative society within his jurisdiction for such period as may be directed by the Co-operative Election Commission;

xi. The Returning Officer shall perform such other functions as may be entrusted to him by the Co-operative Election Commission from time to time.

(4) Functions of the Assistant Returning Officers:

Every Assistant Returning Officer shall, subject to the control of the Returning Officer, be competent to perform all or any of the functions of the Returning Officer as may be assigned to him by the Returning Officer or by the Co-operative Election Commission.

(5) Role of Presiding Officer and Polling Officers : Under the supervision and control of the Returning Officers or the Assistant Returning Officers, the Presiding Officer and the Polling Officers shall take poll on the day of election and immediately after close of the poll, they shall count the votes cast by the electors and prepare the reports/returns as may be directed. They shall also submit the documents or materials relating to the election to the concerned Returning Officer or the Assistant Returning Officers.

(6) Delimitation :

Under the supervision, direction and control of the Co-operative Election Commissioner, delimitation shall have to be done by the Special Officer/Administrator/nominated Board/elected board with the help of the Directorate of Co-operation and the local Panchayat or Municipality, as the case may be, if so required.

(7) Electoral Roll :

Under the supervision, control and direction of the Co-operative Election Commission, the Returning Officer or the Assistant Returning Officer shall take necessary action in order to make the electoral roll updated. For this purpose, the Returning Officer or the Assistant Returning Officer shall publish the electoral roll or voters' list inviting objections, if any, thereon at least 40 days prior to the date of the election and upon hearing of such objections, the list will be finalised. The said list shall have to be published not less than 25 days prior to the date fixed for election by affixing the same to the Notice Board at the Head Office of the co-operative society, all its branches and other places, if necessary, such as, Panchayat Offices, Municipalities etc..

(8) Qualification for being elected : Provisions of the West Bengal Co-operative Societies Act, 2006 and the West Bengal Co-operative Societies Rules, 2011 shall have to be followed for being elected as a delegate or director.

(9) (i) An election of delegates shall be held for the purpose of constituting a new Board of Directors in a co-operative society before the expiry of the tenure of the existing Board or on its dissolution.

(ii) For the said purpose the Returning Officer or the Assistant Returning Officer shall, by one or more order or orders as may be recommended by the Co-operative Election Commission, call upon a co-operative society to elect delegates in accordance with the provisions of the West Bengal Co-operative Societies Act, 2006 and of the rules and orders made thereunder.

(10) (i) Notice of the delegate election under signature of the Returning Officer or the Assistant Returning Officer shall be affixed on the Notice Board of the Society and also at such other conspicuous place or places as the Commission may decide. The notice of the delegate election shall be sent to the members in one or more of the following modes, namely -

(a) by local delivery under proper receipt, or

(b) by registered post, or

(c) by publication through press.

(ii) The notice shall contain information regarding -

(a) the number of vacancies to be filled up by election;

(b) the area from which the member is to be elected as delegate;

(c) the qualification, if any, prescribed in the rules and by-law for eligibility for membership of the board;

(d) the date on which, the place at which and the hours between which the nomination papers shall be filed by a member, such date being not less than ten clear working days before the date fixed for election;

(e) the date on which, the place at which, and the hour when the nomination papers will be scrutinized; and

(f) the date on which, the place at which and hours between which the polling will take place.

(11) Requisition of Polling Station: The Returning Officer shall make requisition of polling stations in consultation with the local Panchayat/ Municipality/ Educational Institution etc. provided that no religious place shall be used for this purpose.

(12) (i) The nomination of a candidate for election shall be filed in the Form prescribed in the West Bengal Co-operative Societies Rules, 2011 within such time as may be specified in the notice of election.

(ii) A candidate at an election may appoint any person to be his Election Agent and the said appointment shall be made in the following Form in duplicate:

Election to delegates of ..... (name of the co-operative society) from ..... constituency.

To

The Returning Officer /Assistant Returning Officer,

.....

I ..... son of .....

of....., a candidate/an

intending candidate at the above election of.....

.....do hereby appoint

.....son of .....

of ..... as my authorised

representative from this day at the above election.

Place : Signature of Candidate

Date -./Intending Candidate

I accept the above appointment.
Signature of Election Agent

Approved

Signature & Seal of the
Returning Officer / Assistant Returning Officer.

(iii) Disqualification for being an election agent.-Any person who is for the time being disqualified under the Constitution or under this Act for being an elected delegate, shall, so long as the disqualification subsists, also be disqualified for being an election agent at any election.

(iv) Any revocation of the appointment of an election agent, shall be signed by the candidate, and shall operate from the date on which it is lodged with the Returning Officer.

(v) In the event of such a revocation or of the death of an election agent whether that event occurs before or during the election, the candidate may appoint in the prescribed manner another person to be his election agent and when such appointment is made notice of the appointment shall be given in the prescribed manner to the Returning Officer.

(vi) A candidate shall have to be an elector of the same co-operative society from which he is willing to contest.

(vii) Proposer/Seconder of a candidate shall be of the same co-operative society.

(viii) An elector can propose/second such number of candidates as equivalent to the number of seats for which poll is to be held.

(ix) Every nomination paper shall be presented either by the candidate himself/ herself or through his / her Election Agent, if any, to the Returning Officer /Assistant Returning Officer of the Election Commission as may be decided.

(x) The person who receives the nomination paper shall enter in the nomination paper its serial number and certify the date and hour at which the nomination paper is received by him and also immediately acknowledge the receipt of the nomination paper.

(13) On the day following next the date fixed as the last date for the receipt of nomination papers, the Returning Officer / Assistant Returning Officer shall take up the scrutiny of the nomination paper. The proposer and the seconder, besides the candidate / election agent, may be present at the time of scrutiny.

(14) (i) The Returning Officer / Assistant Returning Officer shall examine the nomination papers and decide all objection which may be made at the time of scrutiny and may, either on such objection or on its own motion, after such summary enquiry, as the Returning Officer / Assistant Returning Officer may consider necessary, reject any nomination paper on sufficient ground;

Provided that the nomination of a candidate shall not be rejected merely on the ground of an incorrect description of his name or of the name of his proposer or seconder or of any other particulars in regard to the candidate or his proposer or the seconder as entered in the list of members if the identity of the candidate, proposer or seconder, as the case may be, is established.

(ii) The Returning Officer / Assistant Returning Officer shall give all reasonable facilities to the contesting candidates or their Election Agents to examine all the nomination papers for satisfying themselves about the correctness of their scrutiny.

(iii) The Returning Officer / Assistant Returning Officer shall endorse on each nomination paper its decision and if the nomination paper is rejected, shall record in writing the reasons for such rejection.

(15) The list of valid nominations shall be published on the notice board of the society on the same day on which the scrutiny of the nomination paper is completed but not later than one hundred and sixty eight hours before the time of election.

(16) Any candidate may withdraw his candidature by notice in writing signed by him and delivered in person at any time after the presentation of his nomination paper but before 3 p.m. on the day following the day on which the list of valid nominations is published. A notice of withdrawal of a candidate, once given, shall be final.

Provided that after the close of date and hour of withdrawal of candidates, the list of valid candidates shall be published on the Notice Board of the Society on the same day.

(17) If for any co-operative society for which election is to be held the number of candidates in respect of whom valid nomination papers have been filed does not exceed the number of delegates to be elected from that co-operative society, the candidates in respect of whom valid nominations have been received shall be deemed to have been duly elected as delegates from that co-operative society, and the Returning Officer/ Assistant Returning Officer shall immediately publish the names of such candidates in the Notice Board of the co-operative society.

(18) If the number of candidates for any co-operative society exceeds the number of delegates to be elected, the election shall be held by ballot. The ballot will be printed by the Returning Officer / Assistant Returning Officer at the expenses of the respective co-operative society. The names of the candidates in the ballot paper will be arranged in the order of English alphabet and will be printed in the vernacular and English language.The ballot paper shall be signed by the Presiding Officer. The Returning Officer shall allot symbols to the contesting candidates as per relevant provision of the WBCS Rules, 2011 which shall also be printed on the ballot paper against the names of respective candidates. Rules, 2011 which shall also be printed on the ballot paper against the names of respective candidates.

(19) Ballot Paper :

(i) Every ballot paper shall have a counterfoil attached thereto which shall be in the following format:

Counterfoil

Election to delegates/directors of ..... Coop. Society

Name of the area/zone/constituency:

.....

Serial No. of the elector.....

Signature or Thumb Impression of elector .....

Perforation

Election to delegates/directors of .....Coop. Society.

Name of the area/zone/constituency

(ii) Serial number of the ballot paper and its counterfoil shall be printed on the left hand side on the back of the ballot paper.

(iii) If two or more candidates bear the same name, they shall be distinguished by the addition of their residence or occupation or in some other manner.

(iv) For the purpose of printing of ballot papers the Returning Officer / Assistant Returning Officer shall choose any capable press. It may be noted that for the cost involving up to Rs. 500/-, no tender/quotation will be required.

(20) Ballot Box: The Returning Officer / Assistant Returning Officer shall arrange ballot box locally. The ballot box shall be made of tin or any other metal.

(21) Death of a candidate before poll.- (i) If a candidate-

(a) dies at any time after 11 a.m. on the last date for making nomination and his nomination is found valid on scrutiny; or

(b) whose nomination has been found valid on scrutiny and who has not withdrawn his candidature dies;

and in either case, a report of his death is received at any time before the publication of the list of contesting candidates; or

(c) dies as a contesting candidate and a report of his death is received before the commencement of the poll,the Returning Officer shall, upon being satisfied about the fact of the death of the candidate, by order announce an adjournment of the poll to a date to be announced later and report the fact to the Co-operative Election Commission:

Provided that no order for adjourning a poll should be made in a case referred to in clause (a) except after the scrutiny of all the nominations including the nomination of the deceased candidate.

(ii) The Co-operative Election Commission shall, on receipt of a report from the Returning Officer under sub-clause (i), invite fresh nomination for the said poll within seven days of issue of such order:

Provided that no person who has given a notice of withdrawal of his candidature before the adjournment of the poll shall be ineligible for being nominated as a candidate for election after such adjournment.

(iii) Where a list of contesting candidates had been published before the adjournment of the poll under sub-clause (i), the Returning Officer shall again prepare and publish a fresh list of contesting candidates so as to include the name of the candidate who has been validly nominated.

(22) All expenditure related to the delegate election of a co-operative society shall be borne by the society itself including the allowance of the polling personnel to be fixed by the Co-operative Election Commission.

(23) No ballot paper shall be issued to a voter unless the Polling Officer is satisfied about identity of such voter which can be judged by the documents as may be specified by the Election Commission of India.

(24) Adjournment of poll in emergencies.-(i) If at an election the proceedings at any polling station or at the place fixed for the poll are interrupted or obstructed by any riot or open violence, or if at an election it is not possible to take the poll at any polling station or such place on account of any natural calamity, or any other sufficient cause, the Presiding Officer for such polling station or the Returning Officer having jurisdiction over such place, as the case may be, shall announce an adjournment of the poll to a date to be announced later, and where the poll is so adjourned by a Presiding Officer, he shall forthwith inform the Returning Officer concerned.

(ii) Whenever a poll is adjourned under sub-clause (i), the Returning Officer shall immediately report the circumstances to the Co-operative Election Commission, and shall, as soon as may be, with the previous approval of the Co-operative Election Commission, appoint the day on which the poll shall recommence, and fix the polling station or place at which and the hours during which the poll will be taken and shall not count the votes cast at such election until such adjourned poll shall have been completed.

(iii) In every such case as aforesaid; the Returning Officer shall announce in such manner as the Co-operative Election Commission may direct the date, place and hours of polling fixed under sub-clause (ii).

(25) Fresh poll in the case of destruction, etc., of ballot boxes.–(i) If at any election,–

(a) any ballot box used at a polling station or at a place fixed for the poll is unlawfully taken out of the custody of the Presiding Officer or the Returning Officer, or is accidentally or intentionally destroyed or lost, or is damaged or tampered with, to such an extent, that the result of the poll at that polling station or place cannot be ascertained; or

(b) any such error or irregularity in procedure as is likely to vitiate the poll is committed at a polling station or at a place fixed for the poll, the Returning Officer shall forthwith report the matter to the Co-operative Election Commission.

(ii) Thereupon the Co-operative Election Commission shall, after taking all material circumstances into account; either–

(a) declare the poll at that polling station or place to be void, appoint a day, and fix the hours, for taking a fresh poll at that polling station or place and notify the day so appointed and the hours so fixed in such manner as it may deemf it, or

(b) if satisfied that the result of a fresh poll at that polling station or place will not, in any way, affect the result of the election or that the error or irregularity in procedure is not material, issue such directions to the Returning Officer as it may deem proper for the further conduct and completion of the election.

(iii) The provisions of the West Bengal Co-operative Societies Rules, 2011 or orders made thereunder or in these regulations shall apply to every such fresh poll as they apply to the original poll.

(26) Adjournment of poll or countermanding of election on the ground of booth capturing.–(i) If at any election,–

(a) booth capturing has taken place at a polling station or at a place fixed for the poll (hereafter in this clause referred to as a place) in such a manner that the result of the poll at that polling station or place cannot be ascertained; or

(b) booth capturing takes place in any place for counting of votes in such a manner that the result of the counting at that place cannot be ascertained,the Returning Officer shall forthwith report the matter to the Co operative Election Commission.

(ii) The Co-operative Election Commission shall, on the receipt of a report from the Returning Officer under sub-clause (i) and after taking all material circumstances into account, either–

(a) declare that the poll at that polling station or place be void, appoint a day, and fix the hours, for taking fresh poll at that polling station or place and notify the date so appointed and hours so fixed in such manner as it may deem fit; or

(b) if satisfied that in view of the large number of polling stations or places involved in booth capturing the result of the election is likely to be affected, or that booth capturing had affected counting of votes in such a manner as to affect the result of the election, countermand the election .

Explanation.–In this clause, the term "booth capturing" includes, among other things, all or any of the following activities, namely:–

(a) seizure of a polling station or a place fixed for the poll by any person or persons, making polling authorities surrender the ballot papers and doing of any other act which affects the orderly conduct of elections;

(b) taking possession of a polling station or a place fixed for the poll by any person or persons and allowing only his or their own supporters to exercise their right to vote and prevent others from free exercise of their right to vote;

(c) Coercing or intimidating or threatening directly or indirectly any elector and preventing him from going to the polling station or a place fixed for the poll to cast his vote;

(d) seizure of a place for counting of votes by any person or persons, making the counting authorities surrender the ballot papers or voting machines and the doing of anything which affects the orderly counting of votes;

(e) doing by any person in the service of Government, of all or any of the aforesaid activities or aiding or conniving at, any such activity in the furtherance of the prospects of the election of a candidate.

(27) A blind/infirm/illiterate voter may take help of a companion to cast his vote. The Presiding Officer shall keep record in this respect in the manner as prescribed, provided that no person shall be allowed as companion twice.

Statement of Illiterate, Blind and Infirm Voters

Election of delegates of .....
..... (name of the co-operative society)

Serial No. of elector	Full name of elector	Full name of Companion	Address of companion	Signature of companion

Signature of the P.O.

(28) After closing of poll, the Presiding Officer shall prepare a ballot paper account in the following form and enclose it in a separate cover which shall be handed over to the Returning Officer / Assistant Returning Officer. The Returning Officer / Assistant Returning Officer shall preserve the return till declaration of result and thereafter forward the same to the Co-operative Election Commission.

Ballot Paper Account

Election of delegates of the ..... (name of the Co-operative Society).

Name of the Polling Station .....

1. Ballot Paper received/Printed

Sl. No.

From To

Total .....

2. Ballot Papers unused (i.e. not issued to Voters)

(a) With the Signature of the P.O. :

(b) Without the signature of the P.O. :

Total:(a+b) .....

3. Ballot papers used at the polling Station

Total:(l-2)=3 .....

4.

a) Ballot papers cancelled for violation of voting procedure:

b) Ballot paper cancelled for any other reason:

c) Ballot paper issued but not inserted in the ballot Box:

Total (a+b+c) .....

5. Ballot papers to be found in the ballot box

(3-4=5) .....

Signature of the Presiding officer

(3-4=5) .....

Signature of the Presiding officer

(29) Destruction, loss, etc., of ballot papers at the time of counting.–(i) If at any time before the counting of votes is completed any ballot papers used at a polling station or at a place fixed for the poll are unlawfully taken out of the custody of the Returning Officer or are accidentally or intentionally destroyed or lost or are damaged or tampered with, to such an extent that the result of the poll at that polling station or place cannot be ascertained, the Returning Officer shall forthwith report the matter to the Co-operative Election Commission.

(ii) Thereupon, the Co-operative Election Commission shall, after taking all material circumstances into account, either–

(a) direct that the counting of votes shall be stopped, declare the poll at that polling station or place to be void, appoint a day, and fix the hours, for taking a fresh poll at that polling station or place and announce the date so appointed and hours so fixed in such manner as it may deem fit, or

(b) if satisfied that the result of a fresh poll at that polling station or place will not, in any way, affect the result of the election, issue such directions to the returning officer as it may deem proper for the resumption and completion of the counting and for the further conduct and completion of the election in relation to which the votes have been counted.

(iii) The provisions of the West Bengal Co-operative Societies Rules, 2011 or orders made thereunder or in these regulations shall apply to every such fresh poll as they apply to the original poll.

(30) The counting of votes shall commence immediately after the polling is declared over by the authorised polling personnel. Votes shall be counted by or under the direct supervision of the Returning Officer or the Assistant Returning Officer. Each candidate shall have right to be present at the time of counting either personally or through his Election Agent.

(31) (i) A Ballot paper shall be rejected–

(a) if it bears any mark by which the member, who voted can be identified; or

(b) if it does not bear the seal of the society; or

(c) if it does not bear the signature of the Presiding Officer; or

(d) if the mark indicating the vote is made in such manner that it is doubtful to ascertain in whose favour the vote has been cast.

(ii) The Presiding Officer shall be the final authority to decide in the matter of rejection of ballot papers.

(32) On the basis of the return, the candidates who have secured the largest number of valid votes shall be declared elected as delegate and their names shall be immediately published on the Notice Board of the Society under the signature of the Presiding Officer, and in case of equality of votes polled by two or more candidates, lots shall be drawn in such manner as the Presiding Officer may fix, to determine the name of the successful candidate.

(33) The results of the election signed by the R.O./A.R.O. shall be immediately handed over to the society to paste in the minute book of the society.

(34) All the relevant records of the Election should be preserved in the custody of the concerned society, but in exceptional case, such documents are required to be kept in the Range Office if the Commission so directs or with the Returning Officer or the Assistant Returning Officer if so considered necessary by them.

(35) (i) Any dispute relating to election of delegates in any co-operative society shall be referred to the Co-operative Election Commission within 30 days from the date of arising of such dispute.

4. REGULATIONS REGARDING HOLDING OF ELECTION OF THE BOARD OF DIRECTORS OF ANY CO-OPERATIVE SOCIETY HAVING LESS THAN 1000 MEMBERS BY THE CO-OPERATIVE ELECTION COMMISSION:

As per Section 96 of the West Bengal Co-operative Societies Act, 2006 the Co-operative Election Commission has been constituted which shall conduct and supervise the entire process of election of Board of Directors of co-operative societies having less than 1000 member. The procedure for holding election of delegates of co-operative societies as specified in regulation no. 3 of these regulations shall apply *mutatis mutandis* to holding of election of the Board of Directors of such co-operative societies.

5. REGULATIONS REGARDING CONDUCT OF ELECTION OF APEX AND CENTRAL CO-OPERATIVE SOCIETIES:

In respect of delegate election of the Apex and Central Co-operative Societies, or the election of the Board of Director of such societies, the procedure for holding election of delegates of co-operative societies as specified in regulation no. 3 of these regulations shall *mutatis mutandis* apply.

ANNEXURE: Format for certificate of election:

CERTIFICATE

This is to certify that ..... is elected from ..... (Area/ Zone/Constituency) in the election to delegates/directors of .....Co-operative Society on ..... (dd/mm/yy).

Signature of the R.O./ A.R.O.

By order of the

Co-operative Election Commissioner, West Bengal

NIRMALYA KUMAR GHOSH

Secretary,

Co-operative Election Commission

West Bengal

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